

of defects in the Bluelink services or Connected Services related to Bluelink in his Complaint.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602459	EDMUND VS MERCEDES-BENZ USA, LLC	MOTION TO COMPEL ARBITRATION BY MERCEDES- BENZ USA, LLC

Tentative Ruling:

GRANT the Motion to Compel Arbitration.

STAY the matter pending Arbitration. Set the matter for a Status Hearing-Post Arbitration on September 8, 2027, at 8:30am, D-4.

GRANT Plaintiff's Request for Judicial Notice. OVERRULE Plaintiff's evidentiary objections to the Declaration of Sybil S. Leung

Defendant Mercedes-Benz USA, LLC ("MBZ") moves to compel arbitration of this lemon law case pursuant to an Arbitration Agreement contained in the California Motor Vehicle Lease Agreement ("Lease Agreement") executed by and between Plaintiff and the Mercedes-Benz dealership, Walters Auto Sales and Service, Inc. Plaintiff argues that the Arbitration Agreement only applies to claims between the Plaintiff and the dealership, and not the manufacturer or distributor. But this case is not like the *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1101 relied upon by Plaintiff. Here, MBZ is not an unnamed third party. **MBZ is an expressly named third party beneficiary under the arbitration agreement.** The claims covered by the Arbitration Agreement include those arising out of or relating to a credit application, the lease, or any resulting transaction or relationship arising out of the lease (including any such relationship with third parties who do not sign this contract). (Declaration of Sybil Leung, Exhibit 1, Important Arbitration Disclosures.) This broad language covers Plaintiff's Song-Beverly Act claims, which pertain to a transaction or relationship arising from the Lease. Because Defendant has established that MBZ was an intended third-party beneficiary under the lease, and the claims are covered by the Arbitration Agreement, the Motion to Compel Arbitration is Granted.